

Gulzar Singh & Others vs State Of Punjab on 10 September, 2010

Author: Mehinder Singh Sullar

Bench: Mehinder Singh Sullar

Criminal Misc.No.M-7894 of 2009

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IN THE HIGH COURT OF PUNJAB AND HARYANA
AT CHANDIGARH

Date of Decision:-10.9.2010

Gulzar Singh & Others

...Petitioners

Versus

State of Punjab

...Respondent

CORAM: HON'BLE MR.JUSTICE MEHINDER SINGH SULLAR

Present:- Mr.Navdeep, (Amicus curiae) Advocate for the petitioners.

Mr.Shilesh Gupta, Deputy Advocate General, Punjab.

Mehinder Singh Sullar, J. (Oral)

The conspectus of the facts, culminating in the commencement, relevant for disposal of present petition and emanating from the record, is that the marriage of complainant Amrit Kaur, daughter of Harvinder Singh, was solemnized with accused Gulzar Singh son of Harmeet Singh, according to Sikh rites and ceremonies at village Bhagwantpura, District Ropar. The sufficient dowry was stated to have been given by the parents of complainant to the accused at the time of marriage, but the accused party was not satisfied with the dowry articles. According to the prosecution, after three months of the marriage, accused Gulzar Singh and his other family members started treating the complainant with cruelty on the ground that she had brought insufficient dowry. They compelled her to leave her matrimonial home on 21.6.2004. Since then, she is residing with her parents.

2. Levelling a variety of allegations, in all, the prosecution claimed that accused Gulzar Singh husband and his family members (other co-accused) treated the complainant with cruelty on account of and in connection with the demand of dowry and thus cheated her. On the basis of

aforesaid allegations and in the wake of statement of complainant Amrit Kaur, the present case was registered against the accused, vide FIR No.52 dated 27.6.2006 on accusation of having committed the offence punishable under sections 406 and 498-A IPC by the police of Police Station Chamkaur Sahib, District Ropar, in the manner indicated here-in-above.

3. Having completed all the codal formalities, the accused were charge sheeted for commission of offence punishable under sections 406 and 498-A read with section 34 IPC by the trial Magistrate, vide order dated 23.5.2008. The accused denied the prosecution story in its entirety and pleaded false implication.

4. During the course of trial of the case, the good sense prevailed and the matter was compromised between the parties at the intervention of respectables, friends and relatives. Accordingly, a petition was presented before Surya Kant, J. during the proceedings of Mega Lok Adalat held on 20th and 21st December, 2008 in Ropar Sessions Division. Hence, the Sessions Judge, Ropar was advised to refer the matter to the High Court for treating the same as petition under section 482 Cr.PC, vide order dated 3.2.2009.

5. In pursuance of the aforesaid order, the concerned Sessions Judge referred the matter to this Court alongwith reference petition vide Memo No.529 dated 23.12.2008 of trial Magistrate. Therefore, the matter was treated as petition under section 482 Cr.PC. The record of the trial court was summoned, was placed before a Permanent Lok Adalat of this Court and the following order was passed on 28.5.2010:-

"In Lok Adalat at Ropar, statements of Gulzar Singh and her wife Amrit Kaur were recorded. Now, the matter has been put up before this Lok Adalat under orders of the Hon'ble High Court. Gulzar Singh has appeared today and his statement was recorded. Amrit Kaur is stated to have remarried and her whereabouts are not known. Gulzar Singh, in his statement recorded earlier, has admitted that divorce has already been granted under the compromise and he has paid a sum of necessary amount to Amrit Kaur in cash as well as by cheque. In view of compromise, he prays for quashing of the criminal proceedings initiated by the Police Challan No.168 dated 29.08.2006, FIR No.52 dated 27.06.2006, under Section 498-A read with Section 34 IPC, registered at P.S.Chamkaur Sahib, pending in the Court of Judicial Magistrate Ist Class, Ropar.

The matter is returned to the Hon'ble High Court for appropriate orders.

Copy of the statement and order be supplied to Gulzar Singh."

6. In this manner, the present petition was placed before me. That is how, I am seized of the matter.

7. Having heard the learned counsel for the parties and having gone through the record with their valuable help, to my mind, this petition deserves to be accepted.

8. As is evident from the record that the parties have compromised the matter. Their statements were duly recorded, in which, they have reiterated that they have decided to live separately from each other and have filed the divorce petition by way of mutual consent under section 13-B of Hindu Marriage Act. They have settled all their disputes of maintenance etc. Complainant Amrit Kaur has maintained that she has no objection, if the criminal prosecution is withdrawn against the accused. Even from the order of Panel of Lok Adalat, it is clear that the marriage of the parties has already been dissolved by way of mutual consent by a decree of divorce. Therefore, to me, there is no impediment in accepting the lawful agreement to enable the parties to reside peacefully and the criminal prosecution is liable to be quashed in view of the law laid down by Hon'ble Apex Court in cases *Manoj Sharma v. State & Ors.* 2008(4) RCR (Criminal) 827; *B.S.Joshi v. State of Haryana* 2003 (2) RCR (Crl.) 888 (SC) and Full Bench of this Court in case *Kulwinder Singh and others v. State of Punjab* and another 2007 (3) RCR (Criminal) 1052. The observations of these judgments "mutatis mutandis" are applicable to the facts of the present case and are the complete answer to the problem in hand.

9. In the light of the aforesaid reasons, the instant petition is hereby accepted. Consequently, FIR No.52 dated 27.6.2006; charge sheet and all other subsequent proceedings thereto are quashed and all the accused are acquitted of the charges framed against them, in the obtaining circumstances of the case.

10.9.2010
AS

(Mehinder Singh Sullar)
Judge